

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sebastian Saavedra	Team: Squad #01	CCRB Case #: 201900024	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/01/2019 2:10 AM	Location of Incident: West 110th and Broadway	18 Mo. SOL 2/15/2021	Precinct: 26		
Date/Time CV Reported Tue, 01/01/2019 3:51 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 01/01/2019 3:51 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Roger Furmaniak	01765	947009	026 PCT
2. POM Vincent Johnson	08537	948055	026 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Allanronal Caranay	24837	962971	026 PCT
2. POM Jorge Lealenriquez	23574	964111	026 PCT
3. POM Kiley Jones	26625	922564	026 PCT
4. POM Frank Tortorella	02013	961389	026 PCT
5. POM Ricky Erdman	11679	941709	026 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Roger Furmaniak	Abuse: Sergeant Roger Furmaniak threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . POM Vincent Johnson	Off. Language: Police Officer Vincent Johnson made remarks to § 87(2)(b) based upon § 87(2)(b)'s perceived mental disability.	B . Unsubstantiated

Case Summary

On January 1, 2019, § 87(2)(b) filed this complaint on the CCRB's call processing system.

On January 1, 2019, at approximately 2am, § 87(2)(b) called 911 to report that he had been assaulted with a metal object by a panhandler near the intersection of 110th Street and Broadway in Manhattan. Shortly thereafter, several officers arrived on the scene. Sergeant Roger Furmaniak of the 26th Precinct allegedly approached § 87(2)(b) and threatened him with arrest **(Allegation A- Abuse of Authority: Unsubstantiated)**. Police Officer Vincent Johnson, also of the 26th Precinct, said, "He's a bug-out; he lives in § 87(2)(b) he's crazy; he's mentally ill" **(Allegation B- Offensive Language: Unsubstantiated)**.

§ 87(2)(b) was not arrested or issued a summons as a result of this incident.

Video footage from the Body Worn Cameras (BWC) of PO Johnson, PO Frank Tortorella, and PO Ricky Erdman, all of the 26th Precinct, was obtained, which partially captures this incident (Board Review 01, 02 and 03).

Findings and Recommendations

Allegation (A)- Abuse of Authority: Sergeant Roger Furmaniak threatened to arrest § 87(2)(b)

§ 87(2)(b) testified that some time after several officers arrived on scene in response to his 911 call, Sgt. Furmaniak approached § 87(2)(b) and told him to leave the area while § 87(2)(b) remained silent. Sgt. Furmaniak then told § 87(2)(b) he could be arrested for disorderly conduct. § 87(2)(b)'s memory was unclear as to the exact time that this threat of arrest occurred. While § 87(2)(b) could not recall a physical description or name for Sgt. Furmaniak, he testified that he learned he was a sergeant as he heard officers refer to him as such (Board Review 04). According to the Resource Recap Log that covered the time of this incident, Sgt. Furmaniak was the only sergeant that responded to this call (Board Review 05).

BWC footage obtained for PO Johnson, PO Tortorella, and PO Erdman captured a portion of the time § 87(2)(b) was on scene (Board Review 01, 02 and 03). The footage did not show any officer threatening § 87(2)(b) with arrest, nor did it show Sgt. Furmaniak on scene. However, PO Johnson's BWC footage is only 58 seconds long (Board Review 03).

Sgt. Furmaniak, PO Erdman, and PO Johnson denied threatening to arrest § 87(2)(b) or hearing any other officer do so. None of the three officers testified they were aware of § 87(2)(b) acting disorderly in any way (Board Review 06, 07 and 08).

Sgt. Furmaniak testified that he arrived on scene after § 87(2)(b) had left, and interacted only with officers to obtain information about the incident. Sgt. Furmaniak was not informed of anyone yelling or being otherwise disorderly on scene, nor was he consulted by any other officers about possibly arresting § 87(2)(b) (Board Review 06).

PO Erdman testified that, shortly after PO Erdman arrived on scene, Sgt. Furmaniak arrived and spoke briefly to § 87(2)(b) about the incident. PO Erdman did not recall the details of their conversation (Board Review 07).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation (B)- Offensive Language: Police Officer Vincent Johnson made remarks to

§ 87(2)(b) **based upon** § 87(2)(b) **s perceived mental disability.**

§ 87(2)(b) testified that, sometime after he interacted with Sgt. Furmaniak, PO Johnson approached him and said to him, “How’re you doing? I haven’t seen you in a while. He then observed PO Johnson say to other officers nearby, “He’s a bug-out, he lives in § 87(2)(b) he’s crazy, he’s mentally ill” which § 87(2)(b) stated he believed to be in reference to his mental health, and his residence at § 87(2)(b), a mental health residential facility (Board Review 05).

BWC footage captured a portion of the time § 87(2)(b) is on scene, but does not capture any officer calling § 87(2)(b) “crazy” or making reference to any perceived mental disability (Board Review 01, 02 and 03). At 1:30 on PO Erdman’s BWC footage, PO Johnson says to § 87(2)(b) “I haven’t seen you in a while.” § 87(2)(b) then asks PO Johnson if he is referring to where § 87(2)(b) lives, to which PO Johnson replies that he is. § 87(2)(b) asks what this has to do with the incident, to which PO Johnson replies at 1:46, “were just saying hi,” and PO Erdman simultaneously replies “Nothing, we’re just saying we haven’t seen you in a while” and PO Johnson said that they were just saying, “Hi.” Approximately 1:15 minutes later PO Erdman walks away and PO Johnson remains near § 87(2)(b) PO Johnson had no BWC footage from that period of time (Board Review 01).

Sgt. Furmaniak, PO Erdman, and PO Johnson all testified that they did not recall any officer using the above language (Board Review 06, 07 and 08)

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to five CCRB complaints and has been named as a victim in eleven allegations:
 - § 87(2)(b)
 -
- Sgt. Furmaniak had been a member of service for 10 years and has not been a subject in any prior CCRB complaints.
- PO Johnson has been a member of service for 10 years and has not been a subject in any prior CCRB complaints.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A FOIL request was filed with the New York City Office of the Comptroller in regards to Notices of Claim for this incident. When the results of that inquiry are received they will be added to the case file (Board Review 09).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 1

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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